

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 14, 2026, AT 8:30 A.M.

Accordingly, the court grants the preliminary injunction.

The issuing of the preliminary injunction is subject to plaintiff posting of \$5,000 bond with the clerk of the court. (Code Civ. Proc., § 529, subd. (a).) Bond shall be posted by **May 21, 2026**.

19. T-CV-0002604 FLAGG, KEOKI v. WAMPLER, DAVE

This tentative ruling is issued by the **Honorable Trisha J. Hirashima**. If oral argument is requested, it will be heard by the Honorable Trisha J. Hirashima on **Tuesday, May 19, 2026, at 8:30 a.m., in Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

Motion to vacate or set aside execution of writ of possession, August 12, 2025
lockout, and post judgment enforcement

On April 20, 2026, defendant filed a motion to vacate or set aside execution of writ of possession, August 12, 2025 lockout, and post judgment enforcement pursuant to Code of Civil Procedure section 473(d). Defendant previously filed a motion to set aside in June 2025, which was denied by written ruling in August 2025. The sheriff executed the writ of possession on August 12, 2025. Plaintiff opposes the motion.

Code of Civil Procedure section 473 (d) states, “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

The Court of Appeal has outlined the standard for a motion pursuant to Civil Procedure section 473 (d): “[A moving party] could obtain relief under section 473, subdivision (d) only if the [judgment] was void. A judgment is void to the extent it provides relief ‘which a court under no circumstances has any authority to grant.’ (Plaza Hollister Ltd. Partnership v. County of San Benito (1999) 72 Cal.App.4th 1, 20; see Selma Auto Mall II v. Appellate Department (1996) 44 Cal.App.4th 1672, 1683 [‘When a court grants relief which it has no authority to grant, its judgment is to that extent void’].) Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 1004, 1009.

Section 473(d) does not provide relief based on allegations a party did not personally receive, review, or access a ruling before enforcement occurred. Moreover, the court

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previously denied the defendant's prior motion to set aside. Finally, defendant's motion was filed approximately eight months after the sheriff executed the writ on August 12, 2025, and no stay was in effect at the time.

Defendant's motion is accordingly denied. Plaintiff's request, in the opposition, for monetary sanctions and an order that defendant seek leave of court to file any additional motions seeking to relitigate issues of possession, stays, or execution is denied at this time.